

Noxious weed management

06

Obligations under the Noxious Weeds Act

IMPORTANT

Failure to manage noxious weeds could result in a breach of the contractual agreement with RMD's client and the subsequent prosecution of RMS under the Act.

Weed identification

Noxious weeds must be identified at RMD work sites, as there are obligations to control them under the *Noxious Weeds Act 1993 and Amendment 2005*.

An ecologist or the local council's Noxious Weeds Officer can be contacted to inspect the site and identify any infestations. A list of noxious weeds for any local government area can be obtained from www.agric.nsw.gov.au/noxweed.

Inspect all parts of the site for weeds, including:

- road shoulders, verges, table drains, etc.
- access tracks
- stockpile sites
- compound site and vehicle parking areas
- borrow pits.

All noxious weeds must be removed or controlled in accordance with the Weed Control Classes 1–5 and any recommendation from an ecologist or weed officer, before starting work.

Class 3 and 4 weeds are those most likely to be encountered during RMD's work. If noxious weeds are identified on site, obtain a copy of the Council's Weed Management Plan. Class 3 weeds must be fully and continuously suppressed and destroyed. The growth and spread of Class 4 weeds must be controlled according to measures specified in the Weed Management plan prepared by the local council.



Echium spp
(Paterson's curse)

Management Measures

- Inspect topsoil for Class 1,2,3 and 4 noxious weeds prior to stripping. Topsoil contaminated with noxious weeds must not be re-used.
- If there is a need to import fill, topsoil or mulch, ensure that this material is certified as 'Noxious weed free'.
- Control any noxious weeds that germinate after respreading topsoil manually or with an appropriate herbicide.
- To avoid spreading noxious weed infestations, remove any Class 1,2,3 or 4 weeds from work boots, vehicles and plant before leaving the site.

Noxious weed control classes

Class 1: State prohibited weeds

plants that could pose a potentially serious threat to primary production or the environment but are not present in the State or are present only to a limited extent. The plant must be eradicated from the land and the land must be kept free of the plant. These weeds must be notified to the Local Control Authority (usually the local council).

Class 2: Regionally prohibited weeds

plants that pose a potentially serious threat to primary production or the environment of a region but are not present in the region or are present only to a limited extent. The plant must be eradicated from the land and the land must be kept free of the plant. These weeds must be notified to the Local Control Authority.

Class 3: Regionally controlled weeds

plants that pose a serious threat to primary production or the environment, are not widely distributed in the area and are likely to spread in the area or to another area. The plant must be fully and continuously suppressed and destroyed.

Class 4: Locally controlled weeds

plants that pose a threat to primary production, the environment or human health, are widely distributed in an area to which the order applies and are likely to spread in the area or to another area. The growth and spread of the plant must be controlled according to the measures specified in a management plan published by the local control authority.

Class 5: Restricted plants

plants that are likely, by their sale or the sale of their seeds or movement within the State or an area of the State, to spread in the State or outside the State. These plants and their seeds must not be sold. These weeds must be notified to the Local Control Authority.